

26STCV09723 26STCV09723

County: los-angeles

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Case Number: 26STCV09723 Hearing Date: September 22, 2026 Dept: 732

Strategic Funding Source, Inc. v. Mac Print Co, LLC.,
et al.

Tuesday, September 22, 2026

CASE NUMBER: 26STCV09723

OPPOSED

Plaintiff

Strategic Funding Source, Inc.'s Motions to Compel Further Responses to
Requests for Admission and Form Interrogatories from Defendant Cory McDonald
i

Facts: This is an action for breach of contract. The Complaint alleges as follows. Defendants Mac Print Co LLC and Cory McDonald agreed to repay \$112,500.00 to Plaintiff Strategic Funding Source, Inc. and personally guarantee repayment of the same amount. (Complaint ¶ 6.) Defendants have defaulted on this agreement. (Complaint ¶¶ 7–9.)

Procedural History: Plaintiff filed the Complaint on March 26, 2026, alleging two causes of action:

1. Breach of Contract
2. Breach of Contract (Guaranty)

Plaintiff filed the
present motions to compel further responses to form interrogatories and
requests for admission from Defendant Cory McDonald on August 14, 2026.

Defendant filed
oppositions on September 8, 2026.

Plaintiff filed
replies on September 14, 2026.

Analysis:

I.

MOTIONS

TO COMPEL FURTHER

“Any party may obtain discovery . . . by propounding to any other party to
the action written interrogatories to be answered under oath.” (Code Civ. Proc., § 2030.010(a).) If a
propounding party is not satisfied with the response served by a responding
party, the former may move the court to compel further interrogatory
responses. (Code Civ. Proc., § 2030.300;
Sinaiko Healthcare Consulting, Inc. v.
Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 403.) The propounding party must demonstrate that the
responses were incomplete, inadequate or evasive, or that the responding party
asserted objections that are either without merit or too general. (Code Civ. Proc., § 2030.300(a)(1)–(3); Sinaiko Healthcare
Consulting, Inc., supra, 148 Cal.App.4th at 403.)

A motion to compel further
responses to requests for admissions may be made on the grounds that an answer
is incomplete or evasive, or an objection is without merit. (Code Civ. Proc. §
2033.290, subd. (a)(1)–(2).)

Plaintiff Strategic Funding

Source, Inc. (“Plaintiff”) seeks further responses to Form Interrogatories No.
15.1, 17.1, 50.1, and 50.6, and Requests for Admission No. 1–35 from Defendant
Cory McDonald (“Defendant”).

As an initial matter, Defendant
objects that the motion was not preceded by adequate informal conference under

Code of Civil Procedure § 2016.040. (Opposition at pp. 3–4.) That statute requires a good faith attempt to resolve discovery issues “either in person, by telephone, or by videoconference.” (Code Civ. Proc. § 2016.040, subd. 9a.) Defendant argues that the motions here were only preceded by a letter. (Opposition at pp. 3–5.)

Plaintiff has shown adequate attempts to engage in meet-and-confer efforts before filing the motion. Plaintiff served a meet-and-confer letter describing problems with Defendant’s responses, and specifically requesting Defendant identify dates of availability for an informal discovery conference. (Gibbs Decl. Exh. C.) The reason no such conference occurred is because Defendant did not respond to the request. (Gibbs Decl. ¶¶ 5–6.) Plaintiff has shown adequate efforts to “attempt” informal conference under Code of Civil Procedure § 2016.040, subd. (a), and the fault for the failure of these efforts lies with Defendant, not Plaintiff.

Defendant raises other procedural issues with the motion, such as the fact that electronic service was accomplished by service of a link to the documents, rather than transmission of the files themselves (Opposition at pp. 5–6), and a proposed lack of sufficient detail in Plaintiff’s justification for further responses in the separate statements. (Opposition at pp. 8–9.) Defendant does not explain the materiality of the difference between electronic transmission of files and electronic transmission of links to the files, and the defects identified in Plaintiff’s separate statements (to which Defendant provides no responsive separate statement) are not material.

Further responses are required for both sets of discovery at issue. The Form Interrogatories at issue sought facts and evidence supporting Defendant’s denials of the Complaint’s allegations, affirmative defenses, and denials of requests for admissions (Form Interrogatories No. 15.1 and 17.1), to which Defendant responded only with verbatim recitation of his affirmative defenses, identification of Plaintiff’s counsel as the only person who possessed relevant documents, and the mere statement — true, as discussed below — that he had not provided any admission to the requests for admission targeted by Interrogatory No. 17.1. (Separate Statement at pp. 3–7.)

These responses are deficient.

"Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ. Proc. § 2030.220, subd. (a).) Defendant's responses are not straightforward. They fail to provide separate responses for each material denial or affirmative defense, do not state facts justifying each beyond their recitation, and evidence no attempt to identify the responsive evidence requested.

Defendant's responses to

Interrogatories No. 50.1 and 50.6 are also deficient. Interrogatory No. 50.1 asked Defendant to identify each person who has the agreements in question, to which Defendant responded only with identification of Plaintiff's counsel. (Separate Statement at p. 5.) Interrogatory No. 50.6 asked Plaintiff to state whether and why any agreement alleged in the Complaint was ambiguous, to which Defendant responded, not with an explanation of any ambiguity, but another generalized invocation of Civil Code § 1633.5, addressing electronic communications, which is one of his affirmative defenses. (Separate Statement at p. 6.) These responses are non-responsive, and further response is required.

Further response is also

required to Requests for Admission No. 1–35. Defendant's responses here consisted only of objections, noting Plaintiff's use of a prefatory instruction, and arguing that the requests' reference to external facts and documents rendered them impermissible under 2033.060. (Separate Statement, *passim*.) But if the prefatory instruction is objectionable, that would not absolve Defendant of admitting or denying the requests: "If only a part of a request for admission is objectionable, the remainder of the request shall be answered." (Code Civ. Proc. § 2033.230, subd. (a).) And Defendant's objections that the requests are not complete in themselves under Code of Civil Procedure § 2033.060, subd. (d), because they ask questions concerning the genuineness and legal effect of documents attached as exhibits is meritless. The statutory purpose of requests for admissions is to permit requests to "admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact." (Code Civ. Proc. § 2033.010.) Nothing in the requests here exceeds these bounds.

And as a further response is to

be given to the requests for admission, further response is also necessary for Form Interrogatory No. 17.1, which seeks facts and evidence justifying non-admitted responses.

The motions there therefore

GRANTED. Further responses shall be served within 20 days of this order.

1.

Sanctions

Statute provides that the court shall impose sanctions upon a party who unsuccessfully makes or opposes a motion to compel further response to interrogatories, requests for production of documents, or requests for admission, absent substantial justification otherwise. (Code Civ. Proc. §§ 2030.300, subd. (d); 2031.310, subd. (h); 2033.290, subd. (d).)

Plaintiff seeks a total of \$2,695.00 in sanctions against Defendant and his counsel in connection with these two motions, representing seven hours of attorney work at \$385 per hour. (Webb Decl. ¶ 7.)

Defendant objects that the notice of motions does not identify the parties persons whom sanctions are sought. (Opposition at pp. 5–6.) This is untrue. The motion identifies “Defendant,” earlier defined specifically as Cory McDonald, and his counsel of record — i.e. John J. Hamilton, the attorney listed on his answer, who signed his discovery responses, and who signs the oppositions to the present motions.

Defendant argues that he has no counsel of record, evidently on the grounds that his answer lists Hamilton only as a “limited scope” attorney pursuant to CRC Rule 3.36. (Opposition at pp. 5–6.) But Hamilton’s identification as Defendant’s counsel on his answer is sufficient to “establish him or her as attorney of record. (Baker v. Boxx (1991) 226 Cal.App.3d 1303, 1310.) That a limited-scope attorney like Hamilton may nonetheless serve as counsel of record is reflected in the very rule pursuant to which he appears. (See CRC Rule 3.36, subd. (c) [“Notwithstanding rule 3.1362, an attorney who has completed the tasks specified in the Notice of Limited Scope Representation (form CIV-150) may use the procedures in this rule to request that he or she be relieved as attorney in cases in which the attorney has appeared before the court as an attorney of record and the client has not signed a Substitution of Attorney--Civil (form MC-050).”].)

Thus sanctions are properly

awarded against both Defendant and his attorney of record John J. Hamilton in the amount of \$2,695.00.

Superior Court of California

County of Los Angeles

Department 732

STRATEGIC FUNDING SOURCE, INC.,

Plaintiff,

v.

MAC

PRINT CO., LLC., et al.,

Defendants.

Case No.:

26STCV09723

Hearing Date: September 22, 2026

[TENTATIVE] RULING RE:

Plaintiff Strategic Funding Source, Inc.'s Motions to Compel
Further Responses to Requests for Admission and Form Interrogatories from
Defendant Cory McDonald

Plaintiff

Strategic Funding Source, Inc.'s Motions to Compel Further Responses to
Requests for Admission and Form Interrogatories from Defendant Cory McDonald
are GRANTED. Sanctions are awarded against Defendant and his counsel, John H.
Hamilton, in the amount of \$2,695.00. Further responses shall be served within
20 days of this order, and the sanctions paid within the same time.

Plaintiff to provide notice.

Dated: September 22, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court